

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1836

By: Hefner

AS INTRODUCED

An Act relating to state government; amending 74 O.S. 2021, Section 3003, as amended by Section 3, Chapter 252, O.S.L. 2022 (74 O.S. Supp. 2024, Section 3003), which relates to the State Use Advisory Council; modifying terms; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 74 O.S. 2021, Section 3003, as amended by Section 3, Chapter 252, O.S.L. 2022 (74 O.S. Supp. 2024, Section 3003), is amended to read as follows:

Section 3003. As used in Section 3001 et seq. of this title:

1. "Blind person" means a person having a visual acuity not to exceed 20/200 in the better eye, with correcting lenses, or visual acuity greater than 20/200 but with limitation in the field of vision such that the widest diameter of visual field subtends an angle no greater than twenty (20) degrees;

2. "Council" means the State Use Advisory Council;

3. "Qualified nonprofit agency for the employment of people with significant disabilities" means a nonprofit agency employing

1 persons with significant disabilities who ~~constitute~~ work at least
2 ~~seventy five percent (75%)~~ fifty percent (50%) of the direct labor
3 hours engaged in direct production, manufacturing, processing and/or
4 assembling of products or services offered by the agency for
5 procurement by this state ~~or who meet the definition of blind person~~
6 ~~as provided for in paragraph 1 of this section,~~ or which is
7 certified as a sheltered workshop by the Wage and Hour Division of
8 the United States Department of Labor;

9 4. "Person with significant disabilities" means an individual
10 with a physical or mental disability constituting a substantial
11 handicap to employment and preventing the person from engaging in
12 normal competitive employment ~~and/or includes any,~~ a blind person,
13 as defined in paragraph 1 of this section, or an individual with
14 intellectual disability or developmental disability, as defined in
15 Section 1408 of Title 10 of the Oklahoma Statutes;

16 5. "Qualified organization" means a blind person or qualified
17 nonprofit agency for the employment of people with significant
18 disabilities contracting to supply goods or services;

19 6. "Manufactured" means goods made by manual labor;

20 7. "Produced" means to have brought into existence or created
21 from raw materials;

22 8. "Processed" means the action of taking something through an
23 established and mostly routine set of procedures or steps to
24 substantially convert a potential product from one form to another.

1 This action involves a sequence of multiple steps each requiring a
2 distinct decision-making process to evolve a potential product to
3 the next step;

4 9. "Assemble" means to put or fit together or put together the
5 parts of a potential product;

6 10. "Central nonprofit agency (CNA)" means a qualified 501(c)3
7 nonprofit entity meeting the qualifications in the Request for
8 Procurement (RFP) issued by the Office of Management and Enterprise
9 Services selected to administer and oversee the State Use Program;
10 and

11 11. "Procurement schedule" means a designated schedule of
12 products and services currently approved by the Office of Management
13 and Enterprise Services Central Purchasing Division as suitable to
14 procure from qualified organizations participating in the State Use
15 Program.

16 SECTION 2. This act shall become effective November 1, 2025.

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